

BANARAS HINDU UNIVERSITY

B.Com. (Hons.) FMM — Semester I Examination, 2016-17

Paper No. BCF-112: Business Laws

Time: 3 Hours

Maximum Marks: 70

Instructions: Answer all questions. All questions carry equal marks (14 marks each).

Question 1. “An agreement enforceable by law is a contract.” Explain this statement and discuss the essentials of a valid contract in brief. [14]

OR

“A contract is a contract from the time it is made, not from the date its performance is due.” Comment. [14]

Question 2.

(a) Define the term “Goods”. Discuss the different types of Goods. [5+2]

(b) Explain the doctrine of “Caveat Emptor”. What are its exceptions? [2+5]

OR

(a) What is a Condition? Explain the various implied conditions in the Sale of Goods Act. [7]

(b) What do you mean by an Auction Sale? Discuss the rules regarding auction sale. [7]

Question 3.

(a) Define a “negotiable instrument” and discuss the legal presumptions of a negotiable instrument. [5+2]

(b) What is a cheque? Discuss the similarities and differences between a cheque and a Bill of Exchange. [2.5+2.5+2]

OR

(a) Define Endorsement. Explain different kinds of endorsement with illustrations. [2+5]

(b) Distinguish between a “holder” and a “holder in due course”. What is payment in due course? [4+3]

Question 4. Who is a Consumer? What are his rights under the Consumer Protection Act? Describe the procedure adopted for the redressal of consumer complaints by the district forum. [3+4+7]

OR

What is meant by a “Consumer of Goods” under the Consumer Protection Act, and how is the District Consumer Forum constituted? [14]

Question 5. What is the Foreign Exchange Management Act (FEMA), 2000? Explain its main provisions with regard to the regulation and management of foreign exchange. [14]

OR

What is money laundering, and how is money laundering used to help finance terrorism? [14]